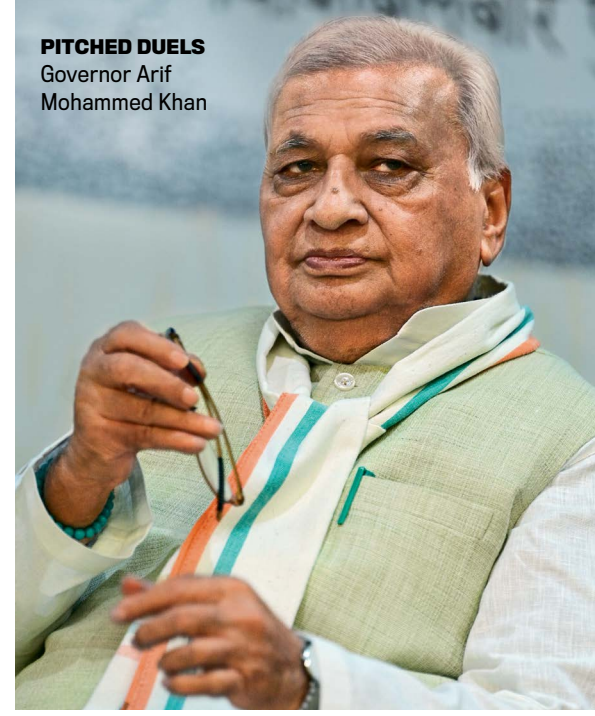
KERALA

STATE VERSUS THE GUV

By Jeemon Jacob



PITCHED DUELS Governor Arif Mohammed Khan

MANISH RAJPUT

The running battle between the Left Front government and Governor Arif Mohammed Khan in Kerala has taken a turn for the worse with the state filing two petitions against Khan in the Supreme Court. The Pinarayi Vijayan-led government wanted court directions for a "reasonable time-frame" for the governor to take decisions on the eight bills pending in his office. Among these, five are related to university administration and have been awaiting Khan's nod for over two years; three other bills have been with his office for over a year.

The relationship between the Pinarayi government and Raj Bhavan has been strained since the Governor demanded the resignation of nine vice-chancellors last year alleging that rules had been flouted in their appointment. The latest in the series of spats was the Governor lambasting the government for its "extravagances" such as the week-long Keraleeyam cultural festival and the building of a swimming pool at the CM's official residence when the state was facing a financial crisis. The state hit back by leaking the fact that the governor's office had demanded a 36-fold hike in funds as Raj Bhavan expenses. Reports say Khan's office wanted an annual allocation of Rs 2.6 crore, up from the current Rs 32 lakh.

The Left Front government was in an upbeat mood on November 10 after the Supreme Court pulled up Punjab governor Banwarilal Purohit over similar delays in giving assent to bills passed by the state assemblies. A senior state CPI(M) leader felt the comments indicated the mood of the apex court against governors "playing dirty politics" in Opposition-ruled states.

Kerala has filed two writ petitions before the apex court, including a special leave petition, demanding an unambiguous time-frame under Article 200 of the Constitution for the Governor to either give his assent to the bills or return them. Khan, meanwhile, was telling the media that the reason he was delaying his assent was because the "CM never briefed me about the affairs of government".

But Pinarayi was having none of that. "It's unfortunate. I've briefed him about the affairs of government whenever it's required or the Constitution has demanded it. I will be meeting him in future too. I think he has some personal agenda for not giving his assent to the bills," the chief minister told the media on November 8 without once mentioning the Governor by name.

> **"It's unfortunate... I think he [Governor Khan] has some personal agenda in not giving his assent to the bills"**
>
> **PINARAYI VIJAYAN,** *Kerala CM*

Khan's penchant for getting involved in matters beyond his gubernatorial brief has also been a problem. An ex-Congressman who famously quit the Rajiv Gandhi cabinet over the Shah Bano case, Khan has never been one to mince words. But some of his perceived "pro-BJP" actions (Khan is a former leader of the party) have caused some consternation in the state. These include his protest in 2020 over the state moving the apex court against the CAA (Citizenship Amendment Act) and the appointment of a BJP state executive member as his staff in the Raj Bhavan.

Meanwhile, the state government's petition to the SC argues that the Governor, by causing an indefinite delays on the bills, has denied the rights of the people, "violating Article 14 of the Constitution". The state had approached the SC after the Kerala High Court disposed of a petition on the Governor's "arbitrary" actions, saying it was not appropriate for it to set up a time-frame for governors to discharge their constitutional duties.

The Governor's latest stand is that he will not give assent to the pending bills till the CM meets him in person. "I am not a rubber stamp," he says. Whatever the merits of the case, there is no denying that the confrontation shows both sides in a poor light. ■